

HEADNOTE

*“1. For competition law reasons, the patent holder is only required to indicate to the patent user one licensing route that satisfies the FRAND requirements (concurring with LD Munich, decision of 18 December 2024 , UPC_CFI_9/2023 , Huawei v Netgear, p. 136).
2. However, there are constellations where the implementer can demand a bilateral licence instead of a pool licence. Such constellations are for example, but nonexclusively, given when the implementer expressed its desire to obtain a multistandard-licence or to sign cross-licencing agreements with the individual patent”*

COURT
Local Division in Hamburg

PROCEEDINGS
Procedural order

PATENT
EP 2 609 590

APPARATUS FOR DECODING A
SIGNAL COMPRISING TRANSIENTS
USING A COMBINING UNIT AND A
MIXER

KEYWORDS

Exhaustion

Art. 29 UPCA

FRAND defence

Art. 101 and 102 TFEU

SUMMARY

The Local Division in Hamburg issued a procedural order. The patent at issue relates to an apparatus for decoding a signal comprising transients using a combining unit and a mixer. According to the headnotes of the decision, a patent holder need only propose one licensing route that meets FRAND requirements for competition law purposes, aligning with the Munich Local Division's earlier reasoning. In certain circumstances, however, an implementer may request a direct bilateral licence instead of participating in a patent pool, particularly when seeking multi-standard licences or pursuing cross-licensing agreements with individual patent holders.